

between the county council and the hospital committee concerned, or, in default of agreement, determined by the Local Government Board.

(2.) In section twenty-two of the principal Act, the words "at the rate of four pounds per centum per annum" are hereby repealed.

Amendment of  
56 & 57 Vict.  
c. 68. s. 8 (3)  
as to appeals.

5. On any appeal against any order including any area in a hospital district under subsection three of section eight of the principal Act, the Local Government Board may by their decision confirm, disallow, or modify the order as they think fit.

Amendment  
of definition  
of local  
authority.

6.—(1.) Notwithstanding anything in section twenty-six of the principal Act, the rural district council shall, to the exclusion of any other authority, be the local authority in the case of any contributory place. But the parish council shall have the same right of appeal to the Local Government Board under subsection three of section eight of the principal Act as a local authority.

(2.) Any liability which immediately before the passing of this Act attached to the local authority in respect of a contributory place, being a parish, shall be transferred to and discharged by the rural district council.

Copies of orders  
to be sent to  
local Govern-  
ment Board.

7. The county council shall, as soon as may be, send a copy of any order made by them under section nine of the principal Act to the Local Government Board.

Representatives  
of county council  
on hospital  
committees.

8. In section ten of the principal Act (which deals with the constitution of hospital committees) "representatives of the county council, whether members of the council or not," shall be substituted for "members of the county council."

Short title.

9. This Act may be cited as the Isolation Hospitals Act, 1901; and this Act and the principal Act may be cited together as the Isolation Hospitals Acts, 1893 and 1901.

## CHAPTER 9.

An Act to regulate the Employment and Attendance of Children at School in Scotland. [9th August 1901.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Parents to pro-  
vide efficient  
elementary  
education for  
their children.

1. It shall be the duty of every parent to provide efficient elementary education in reading, writing and arithmetic for his children who are between five and fourteen years of age.

School  
attendance.

2. It shall not be lawful for any person to take into his employment any child (1) who is under the age of twelve years, or (2) who, being of the age of twelve years and not more than

fourteen years, has not obtained exemption from the obligation to attend school from the school board of the district in the manner provided in the next following section; nor shall any child (1) who is under the age of twelve years, or (2) who, being of the age of twelve years and not more than fourteen years, has not been exempted from the obligation to attend school in manner aforesaid, be employed in any casual employment, as defined by section six of the Education (Scotland) Act, 1878, after nine o'clock at night from the first day of April to the first day of October, and after seven o'clock at night from the first day of October to the first day of April. 41 & 42 Vict.  
c. 78.

Provided that nothing in this section shall prevent any employer from employing any child who is lawfully employed by him or by any other person at the date of the commencement of this Act.

3. It shall be lawful for any school board, where after due inquiry in each case the circumstances seem to justify such exemption, to grant exemption from the obligation to attend school to individual children over twelve years of age, for such time and upon such conditions, if any, as to the amount and manner of further attendance at school until the age of fourteen, as the school board shall think fit; and such exemption shall exempt the parent of such child from any prosecution or other proceeding under the Education Acts for neglecting to provide for the education of such child. Power to  
grant partial  
exemption  
from school  
attendance  
on conditions.

Provided that any school board granting such exemption to individual children shall keep a register wherein shall be entered the names of children so exempted, and a statement of the circumstances in which, and the conditions upon which, such exemption has in each case been granted.

Provided also that the Department shall have power, when it sees fit, to call upon any school board for a return of the children to whom such exemption has been granted, and of the circumstances in which, and the conditions upon which, such exemption has in each case been granted; and if, after due inquiry, the Department is satisfied that such exemption has been granted by any school board in circumstances which did not justify its being so granted, or that the conditions on which such exemption has been granted are insufficient, or that the attendance of scholars within the district of such school board, or any part thereof, is unsatisfactory, the Department may call upon such school board to recall such exemption, or to take steps to improve the attendance; and if the said school board fail to do so within a reasonable time, it shall be lawful for the Department to withhold or reduce the parliamentary grant made to the said school board under section sixty-seven of the Education (Scotland) Act, 1872. 35 & 36 Vict.  
c. 62.

4. The Acts specified in the schedule to this Act are hereby repealed to the extent mentioned in the third column thereof. Repeal.

5. This Act shall commence on the first day of January one thousand nine hundred and two. Commence-  
ment of Act.

6. This Act shall extend to Scotland only.

Extent of Act.

Short title and  
construction.

7. This Act may be cited as the Education (Scotland) Act, 1901, and this Act and the Education (Scotland) Acts, 1872 to 1883, shall be construed as one Act.

## SCHEDULE.

### ENACTMENTS REPEALED.

| Session and Chapter.   | Short Title.                    | Extent of Repeal.                                                                                                                                                                                                                                              |
|------------------------|---------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 35 & 36 Vict. c. 62. - | Education (Scotland) Act, 1872. | Section sixty-nine.<br>Section seventy-three.                                                                                                                                                                                                                  |
| 41 & 42 Vict. c. 78. - | Education (Scotland) Act, 1878. | Section five.<br>Section six.<br>In part, namely,—<br>From the words “and no child” to “to the first day of April” where those words last occur, and from “A school board may,” to the end.<br>Section seven.<br>In part, namely,—<br>The word “hereinbefore.” |
| 46 & 47 Vict. c. 56. - | Education (Scotland) Act, 1883. | Section four.<br>Section six.<br>Section seven.<br>Section eight.                                                                                                                                                                                              |

## CHAPTER 10.

An Act to amend the Larceny Act, 1861.

[9th August 1901.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Fraudulent  
misappropriation of  
property.

1.—(1.) Whosoever—

- (a) being entrusted, either solely or jointly with any other person, with any property, in order that he may retain in safe custody or apply, pay or deliver, for any purpose or to any person, the property or any part thereof or any proceeds thereof; or
- (b) having, either solely or jointly with any other person, received any property for or on account of any other person,